

Medical Attendance Rules

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[Medical Attendance Rules](#)

[Part A ? The Secretary of State's Services \(Medical Attendance\) Rules, 1938](#)

[1.](#)

[\(1\)](#)

[These Rules may be called the Secretary of State's Services \(Medical Attendance\) Rules, 1938.](#)

[\(2\)](#)

[They shall apply to any person, other than a person recruited for service on the railways, when on duty or on leave in British India, of or on foreign service in India-](#)

[\(i\)](#)

[appointed by the Secretary of State in Council or the Secretary of State to a Civil Service of, or a Civil Post under the Crown in India or as a Chaplain; or](#)

(ii)

who, not being a person appointed as aforesaid, holds substantively or temporarily a post reserved under Section 146 of, the Government of India Act, 1915; or

(iii)

who, not being a person appointed as aforesaid or holding a post reserved as aforesaid, holds for the time being a Civil post under the Crown in India and is, or was when he was first appointed to such a post-

(a)

an officer holding a permanent commission in His Majesty's Land Forces other than a Department Officer of the India, Unattached List of the India Medical Department; or

(b)

an officer holding a permanent commission in His Majesty's Indian Land Forces other than a Viceroy's Commissioned Officer; or

(c)

an officer of the Royal Indian Navy other than an Officer of the Royal Naval Reserve, the Royal Indian Naval Volunteer Reserve or a Commissioned Warrant Officer.

2.

In these Rules, unless there is anything repugnant in the subject or context.-

(a)

"authorised medical attendant" means-

(1)

In respect of a Government servant of non-Asiatic domicile-

(i)

if the Government servant was appointed before 1st June 1945, and claims to be attended and treated By a European Officer of the Indian Medical Service, the nearest such officer appointed by the Government to attend its officers of non-Asiatic domicile and stationed at one of the centres specified in the first Schedule to the Indian Medical Service Civil (Reserved post) Rules, 1939;

(ii)

in other cases, the principal medical officer appointed by the Government to attend its officers in the district in which the Government servant falls ill, and includes a European military medical officer or other European physician or surgeon with whom arrangements have been made by the Government to attend its officers of non-Asiatic domicile in the area in which the Government servant falls ill;

(2)

In respect of any other Government servant, the principal medical officer appointed by the Government to attend its officers in the district in which the Government servant falls ill-

(b)

"family" means the wife, legitimate children and step-children of a Government Servant, residing with and wholly dependent upon him;

(c)

"the Government" means the Governor-General in the case of Government servants employed in connection with the affairs of the Federation and the Governor of the Province in the case of Government servants employed in connection with the affairs of a Province;

(d)

"Government hospital" includes a British Military Hospital, a hospital maintained by a local authority and any other hospital with which arrangements have been made by the Government for the treatment of its officers, but does not include a railway hospital;

(e)

"Medical attendance" means attendance in hospital or at the residence of a Government servant, and includes-

(i)

such pathological, bacteriological, radiological or other methods of examination for the purpose of diagnosis as are available in any Government hospital or laboratory in the Province and are considered necessary by the authorised medical attendant; and

(ii)

such consultation with a specialist or other medical officers in the service of the Government as the authorised medical attendant certifies to be necessary, to such extent and in such manner as the specialist or medical officer may, in consultation with the authorised medical attendant, determine;

(f)

"Nurse" means a qualified nurse holding certificate or diploma recognised by the Chief Administrative Medical Officer of the Province or a registered nurse in a province in which there is statutory provision for the registration of nurses:

(g)

"Patient" means a Government servant to whom these Rules apply or a member of his family, who has fallen ill;

(h)

"Province" means the Province in which a patient falls ill; and

(i)

"treatment" means the use of all medical and surgical, facilities available at the Government hospital in which a Government servant is treated; and include-

(i)

the employment of such pathological, bacteriological, radiological or other methods as are considered necessary by the authorised medical attendant;

(ii)

the supply of such medicines, vaccines, sera or other therapeutic substances as are ordinarily available in Government hospitals in the Province;

(ii)

the supply of such medicines, vaccines, sera or other therapeutic substances not ordinarily so available as the authorised medical attendant may certify in writing to be essential for the recovery, or for the prevention of serious deterioration in the condition, of the Government servant;

(iv)

such accommodation as is ordinarily provided in the hospital to which the Government servant is admitted and is suited to his status;

(v)

the services of such nurses as are ordinarily employed by the hospital to which the Government servant is admitted;

(vi)

such special nursing as the authorised medical attendant may certify in writing to be essential for the recovery, or for the prevention of serious deterioration in the condition of the Government servant; and

(vii)

the medical attendance described in sub-clause (ii) of Clause (e) but does not include diet, or provision at the request of the Government servant of accommodation superior to that described in sub-clause (iv).

3.

A Government servant and a member of the family of a Chaplain, shall be entitled, free of charge, medical attendance by the authorised medical attendant.

4.

The families of Government servant, other than those for whom special provision is made in Rule 3, shall be entitled to medical attendance on the payment of such fees as may be mutually arranged between the Government servant and the authorised medical attendant or the Government, or other competent authority, as the case may be.

5.

(1)

When the place at which a patient falls ill is not the headquarters of the authorised medical attendant-

(a)

the patient shall be entitled to travelling allowance for the journey to and from such head-quarters; or

(b)

if the patient is too ill to travel, the authorised medical attendant shall be entitled to travelling allowance for the journey to and from the place where the patient is.

(2)

Application for travelling allowance under sub-rule-(1) shall be accompanied by a certificate in writing by the authorised medical attendant stating that medical attendance was necessary and, if the application is under the Clause (b) of that sub-rule, that the patient was too ill to travel.

6.

(1)

If the authorised medical attendant is of the opinion that the case of a patient is of such a serious or special nature as to require medical attendance by some person other than himself, or that the patient requires antirabic treatment, he may, with the approval of the Chief Administrative Medical Officer of the Province (which shall be obtained beforehand unless the delay involved entails danger to the health of the patient):-

(a)

send the patient to the nearest specialist or other medical officer in the province by whom, in his opinion, medical attendance is required for the patient, or in the case of anti-rabic treatment to the nearest station in the province where such treatment is available; or

(b)

if the patient is too ill to travel, summon such specialist or other medical officer to attend upon the patient.

(2)

A patient sent under Clause (a) of sub-rule (1) shall on production of a certificate in writing by the authorised medical attendant in this behalf be entitled to travelling allowance for the journey to and from the head-quarters of the specialist or other medical officer, or as the case may be, the place of anti-rabic treatment.

(3)

A specialist or other medical officer summoned under Clause (b) of sub-rule (1) shall on production of a certificate in writing by the authorised medical attendant in this behalf be entitled to travelling allowance for the journey to and from the place where the patient is.

7.

(1)

A Government servant shall be entitled, free of charge, to treatment-

(a)

in such Government hospital in district in which he falls ill, as can in the opinion of the authorised medical attendant, provide the necessary and suitable treatment; or

(b)

if there is no such hospital as is referred to in Clause (a) in such hospital, other than a Government hospital in that district as can in the opinion of the authorised medical attendant provide the necessary and suitable treatment; or

(c)

if there is no such hospital as is referred to in Clauses (a) and (b) in such hospital in the Province as can in the opinion of the authorised medical attendant, provide the necessary and suitable treatment.

(2)

Where a Government servant is entitled, under sub-rule (1) free of charge, to treatment in a hospital, and amount paid by him on account of such treatment shall, on production of a certificate in writing by the authorised medical attendant in this behalf, be reimbursed to him.

8.

(1)

If the authorised medical attendant is of opinion that owing to the absence or remoteness of a suitable hospital or to the severity of the illness, a Government servant cannot be given treatment as provided in sub-rule (1) of Rule 7, the servant may receive treatment at his residence.

(2)

A Government servant receiving treatment at his residence under sub-rule (1) shall be entitled to receive towards the cost of such treatment incurred by him a sum equivalent to the cost of such treatment as he would have been entitled, free to charge, to receive under these Rules if he had not been treated at residence.

(3)

Claims for sums admissible under sub-rule (2) shall be accompanied by a certificate in writing by the authorised medical attendant, stating-

(a)
his reasons for the opinion referred to in sub-rule (1)-

(b)
the amount of the cost of similar treatment referred to in sub-rule (2).

9.

(1)
Charges for services rendered in connection with but not included in medical attendance on or treatment of, a patient, entitled, free of charges, to medical attendance or treatment under these Rules shall be determined by the authorised medical attendant and paid up the patient.

(2)
If any question arises as to whether any service is included in medical attendance or treatment, it shall be referred to the Government and the decision of the Government shall be final.

10.

Nothing in these Rules shall be deemed to entitle a patient-

(a)
to travelling allowance for a journey-

(i)
for attendance by a dentist or oculist; or

(ii)
outside the Province; or

(b)
to reimbursement of costs incurred in respect of medical services obtained by him, or to travelling allowance for any journey preformed by him, otherwise than as expressly provided in these Rules.

11.

The Government may, by general or special order, direct that any certificate required by these Rules to be given by the authorised medical attendant and the controlling officer for travelling allowance purpose, of a patient may, by special order, direct that any certificate so required for such purposes, shall be countersigned by the Chief Administrative Medical Officer of the Province.

12.

No Government Servant shall be transferred to Foreign Service unless the foreign employer undertakes to afford him, so far as may be, privileges not inferior to those which he would have enjoyed under these Rules if he had been employed in the service of the Crown in India.

13.

Nothing in these Rules shall be construed as preventing the Government from granting to any person to whom they apply and concession relating to medical treatment or attendance which is not authorised by these Rules.

14.

Until the commencement of Part II of the Government of India Act, 1935, references in these Rules to the Governor-General shall be construed as references to the Governor-General in Council.

(2)

In the discharge of his functions under these Rules the Governor, and after the commencement of Part II of the said Act, the Governor-General, shall exercise his individual Judgement

Part B ? Central Services (Medical Attendance) Rules, 1944

Preamble. - In exercise of the powers conferred by sub-section (2) of Section 241, read with sub-section (3) of Section 313, of the Government of India Act, 1935, the Governor-General-in-Conceal is pleased to make the following Rules, namely:

1.

(1)
[These Rules may be called the Central Service (Medical Attendance) Rules, 1944.]

[These Rules supersedes all the previous sets of Rules on the subject.]

(2)

They shall apply to all Government servants other than (i) those in railway service and (ii) those of non-gazetted rank

stationed in or passing through Calcutta whose conditions of service are prescribed by rules made or deemed to be made by the Central Government, when they are on duty or on leave in British India or on Foreign Service in India.

2.

In these Rules, unless there is anything repugnant in the subject or context.-

(a)

"Authorised Medical Attendant" means-

(i)

in respect of a Government Servant who belongs to a Central Services, Class I, or whose pay is less than Rs. 500 per mensem, the Principal Medical Officer of the district appointed by the Government to attend its officers in the district;

(ii)

in respect of a Government Servant not belongs to a Central Service, Class I, whose pay is less than Rs. 550 but more than Rs. 150 per mensem, an Assistant Surgeon, or other Medical Officer of the rank not inferior to an Assistant Surgeon appointed by the Government to attend its officers in the station;

(iii)

in respect of any other Government Servant, a Sub-Assistant Surgeon or other Medical Officer of rank not inferior to that of Sub-Assistant Surgeon, similarly appointed.

(b)

"District" means the district in which the Government Servant falls ill.

(c)

"The Government" means-

(i)

in respect of the Province of Delhi-the Central Government;

(ii)

in respect of any other Chief Commissioner¹ Province-The Chief Commissioner; and

(iii)

in respect of a Governor's Province-the Provincial Government.

(d)

"Government Hospital" includes a British Military Hospital subject to the provisions of Appendix 32 to the Regulation for the Medical Service of the Army in India, 1937, a hospital maintained by a local authority and any other treatment of Government Servants.

(e)

"Medical Attendance" means-

(i)

in respect of a Government Servant specified in sub-clause (i) of Clause (a), attendance in hospital or at the residence of the Government Servant, including such Pathological, Bacteriological, Radiological or other methods of examination for the purpose of diagnosis as are available in any Government Hospital in the district and are considered necessary by the authorised medical attendant and such consultation with a specialist or other medical officer in the service of the Crown stationed in the Province as the authorised medical attendant certifies to be necessary to such extent and in such manner as the specialist or medical officer may, in consultation with the authorised medical attendant determine;

(ii)

in respect of any other Government servant but excluding a member of the Central Services, Class, IV, attendance at a hospital or in the case of illness which compels the patient to be confined to his residence, at the residence of the Government servant including such methods of examination for purposes of diagnosis as are available in the nearest Government hospital and consultation with a specialist or other medical officer of the Crown stationed in the district as the authorised medical attendant certifies to be necessary to such extent and in such manner as the specialist or medical officer may, in consultation with the authorised medical attendant, determine;

(iii)

in respect of a member of the Central Service, Class IV, attendance at a hospital, including, such methods of examination for purposes of diagnosis as are available in the nearest Government hospital and such consultation with a specialist or other medical officer of the Crown stationed in the district as the authorised medical attendant certifies to be necessary to such extent and in such manner as the specialist or medical officer may in consultation with the authorised

medical attendant, determine.

(f)
"Patient" means a Government servant to whom these Rules apply and who has fallen ill.

(g)
"Province" means the Province in which patient has fallen ill;

(h)
"Treatment" means the use of all medical and surgical facilities available at the Government hospital in which the Government servant is treated and includes-

(i)
the employment of such Pathological, Bacteriological, Radiological or other methods as are considered necessary by the authorised medical attendant;

(ii)
the supply of such medicines, vaccines, sera or other therapeutic substances as are ordinarily available in the hospital;

(iii)
the supply of such medicines, vaccines, sera or other therapeutic substances not ordinarily so available as the authorised medical attendant may certify in writing to be essential for the recovery, of or for the prevention of serious deterioration in the condition, of the Government servant;

(iv)
such accommodation as is ordinarily provided in the hospital and is suited to his status, accommodation in general or free wards in the hospital being regarded as suitable for members of the Central Service, Class IV;

(v)
such nursing is ordinarily provided to in-patients by hospital; and

(vi)
the specialist consultation described in Clause (e) but does not include diet or provision at the request of the Government servant of accommodation superior to that described in sub-clause (iv).

3.
A Government servant shall be entitled to, free of charge, to medical attendance by the authorised medical attendant.

(ii)
Where a Government servant is entitled under sub-rule (i), free of charge, to receive medical attendance may amount paid by him on account of such medical attendance shall, on production of a certificate in writing by the authorised medical attendance in this behalf, be reimbursed to him by the Central Government.

4.
When the place at which a patient falls ill is not the headquarters of the authorised medical attendant-

(a)
the patient shall be entitled to travelling allowance for the journey to and from such headquarters; or

(b)
if the patient is too ill to travel, the authorised medical attendant shall be entitled to travelling allowance for the journey to and from the place where the patient is-

(i)
Applications for travelling allowance under sub-rule (i) shall be accompanied by a certificate in writing by the authorised medical attendant stating that medical attendance was necessary and if the application is under Clause (b) of that sub-rule that patient was too ill to travel.

5.
(1)
If the authorised medical attendant is of opinion that the case of a patient is of such a serious or special nature as to require medical attendance by some person other than himself, he may, with approval of the Chief Officer of the Province (which shall be obtained beforehand unless the delay involved entails danger to the health of the patient)-

(a)
send the patient to the nearest specialist or other medical officer as provided in Clause (e) of Rule 2 by whom, in his opinion, medical attendance is required for the patient; or

(b)

if the patient is too ill to travel, summon such specialist or other medical officer to attend upon the patient.

(2)

A patient sent under Clause (a) of sub-rule (1) shall, on production of a certificate in writing by the authorised medical attendant in this behalf, be entitled to travelling allowance for the journey to and from the headquarters of the specialist or other medical officer.

(3)

A specialist or other medical officer summoned under clause (b) of sub-rule (1) shall on production of a certificate in writing by the authorised medical attendant in this behalf be entitled to travelling allowance for the journey to and from the place where the patient is.

6.

(1)

A Government servant shall be entitled, free of charge to treatment-

(a)

in such Government hospital at or near the place where he falls ill as can in the opinion of the authorised medical attendant provide the necessary and suitable treatment; or

(b)

if there is no such hospital as is referred to in sub-clause (a) in such hospital other than a Government hospital at or near the place as can in the opinion of the authorised medical attendant, provide the necessary and suitable treatment.

(2)

Where a Government servant is entitled under sub-rule (1), free of charge, to treatment in a hospital, any amount paid by him on account of such treatment shall, on production of a certificate in writing by the authorised medical attendant in this behalf, be reimbursed to him by the Central Government.

7.

(1)

If authorised medical attendant is of opinion that owing to the absence or remoteness of a suitable hospital or to the severity of the illness, a Government servant cannot be given treatment as provided in Clause (1) of sub-rule 6, the Government servant may receive treatment at his residence.

(2)

A Government servant receiving treatment at his residence under sub-rule (1) shall be entitled to receive towards the cost of such treatment incurred by him a sum equivalent to the cost of such treatment as he would have been entitled, free of charge, to receive under these Rules if he had not been treated at his residence.

(3)

Claims for sums admissible under sub-rule (2) shall be accompanied by a certificate in writing by the authorised medical attendant stating-

(a)

his reasons for the opinion referred to in sub-rule (1);

(b)

the cost of similar treatment referred to in sub-rule (2).

8.

(1)

Charges for service rendered in connection with but not included in medical attendance on, or treatment of, a patient entitled, free of charge, to medical attendance or treatment under these Rules, shall be determined by the authorised medical attendant and paid by the patient.

(2)

If any question arises as to whether any service is included in medical attendance or treatment, it shall be referred to the Government and the decision of the Government shall be final.

9.

The controlling officer of a patient may require that any certificate required by these Rules to be given by the authorised medical attendant for travelling allowance purpose shall be countersigned-

(a)

in the case of a certificate given by the principal officer by a district by the Chief Administrative Medical Officer of the

Province; and

(b)
in the case of a certificate given by any other medical officer by the principal officer of the district.
10.

No Government servant shall be transferred to foreign service unless the foreign employer undertakes to afford to him so far as may be privileges not inferior to those which he have enjoyed under these Rules if he had been employed in the service of the Government of India.

Part C ? Rules for the Grant of Free Medical Attendance and Supply of Medicine to Government Servants of the Province

These Rules were published with Notification No. 855-L.S.G., dated the 2nd October, 1947)

1. Title of Government servant to free medical attendance and free supply of medicine.

- Every Government servant is entitled to receive for himself free medical attendance and such medicines as are available in the hospital or dispensary at which he is being treated under every circumstance, whether at his own or another station whether passing through his own or another district, and whether on duty or on leave.

Note 1. - Every person employed under the Court of Wards, who is appointed by Government but is paid from the Wards Estate, shall be entitled to receive free medical attendance any medicines in those cases only in which the service counts for pension under the Civil Service Regulations. Road Cess Officers are also entitled to gratuitous medical attendance and medicine. This note is applicable to only those employees of the Court of Wards who are Government servants in Foreign Service under the Court of Wards.

(Board of Revenue letter no. 20-360-2, dated the 28th March, 1941)

2. A Government servant on foreign service, who has no medical officer provided by his foreign employer, is entitled, in accordance with his status, to the services of the Government medical officer of the station in or near which he is employed. A Government officer of Gazetted Rank employed on foreign service who is not provided by his employer with a medical attendant of Gazetted Rank, shall be entitled to the same concession.

3. When a Government servant has been admitted to a hospital or dispensary as an outdoor or indoor patient, he should be provided with all requisite medicines which are considered essential. Nursing may also be made available as far as possible within the resources of the hospital. It is the duty of the hospital or dispensary to supply the required drugs and medicines and there should be no occasion for the Government servant to himself purchase any medicine while admitted as an indoor patient, if he is asked to do so, the medical officer should state the special circumstance as to why a particular medicine recommended by him could not be supplied from the hospital or dispensary and he should also state whether that medicine or its substitute is not available in the hospital or dispensary, nor it can be procured by the hospital or dispensary. On the production of such certificate from the hospital or dispensary authority, the amount should be reimbursed to the Government servant concerned.

(Local self-Government Department letter No. 15265-Meal.... dated the 11th December, 1950)

4. Dental treatment is not included in medical treatment.

5. Free medical attendance includes the obligation to give such special treatment or treatments by specialist as is available in Government institutions without charge subject to the following restrictions:

(a)
Consultation with specialist and special treatment should be carried out as far as possible during the official duty hours though exceptions may be permitted in emergency.

(b)
Specialist should not ordinarily be called from their own station but the patients should go to the specialist.

(c)
All requisition for special treatments by specialist should ordinarily be countersigned or sent by the Civil Surgeon and no Assistant Surgeon or Sub-Assistant Surgeon should send any requisition for special treat or treatments by specialist to the specialist concerned direct.

(Local Self-Government Department letter No. 343-L. S. G. R. dated the 12th May, 1928)

6. The word "specialist" in Note 5 above means specialists, who have been recognised by Government as such either by special positing or by the grant of special allowance, e.g., the Professor of Surgery or a Civil Surgeon who has been given special allowance for doing X-ray duties or an Assistant Surgeon placed under the special charge of X-ray or Radium treatment, But the medical officer who has specialised at his own cost. Eye, Nose and Throat work but who has

not been appointed to special knowledge liable to treat Government servant free of charge in his own special subject. Local Self-Government Department letter No. 343-L. S. G. R. dated the 12th May 1928).

7. For the purpose of countersigning or sending recommendations for free pathological tests or X-ray examinations, the Professors of Surgery, Medicine and Gynaecology have been placed on the same footing as the Civil Surgeon and they are entitled to countersign or send requisitions for free pathological tests or X-ray examinations without any reference to the Civil Surgeon subject to one of the two following conditions being fulfilled:-

(a)

That the Government servant consults the Professors of Surgery, Medicine or Gynaecology as the case may be on the recommendation of the Civil Surgeon in accordance with the instructions contained in Note 5 above.

(b)

Where the Government servant consults the Professor direct and not through the Civil Surgeon, free treatment by the Pathological or X-Ray Departments will be given only if the Professors of Surgery, Medicine or Gynaecology as the case may be is himself treating the Government servant free.

8. All the doctors of the Patna Medical College Hospital who have beds in the hospital are authorised to countersign any requisition for free investigation by the Pathological Department on the Patna Medical College without any reference to the Civil Surgeon subject to the conditions (a) and (b) specified in Note 7 above.

9. Retired pensioners are not treated as Government servants for the purpose of these rules and instructions but re-employed pensioners are treated as Government servants.

10. The facility of free medical attendance and treatment at hospital as allowed to Government servants has also been extended to the Government servants, families (vide Appendix 1).

11. The rules for the classification and charges for Government servants and their families admitted as patients in the different categories in paying wards in Government hospitals are as given in Appendix 11.

12. Government servants being treated at their residences are also entitled to the free supply of medicines under certain circumstances for which attention is invited to Notes 2 and 3 under Rule 3.

2. Classification of Government servants for the purpose of medical attendance by Civil Surgeon, Assistant Surgeon and Sub-Assistant Surgeon.

- Every Civil officer of Government is entitled to receive the personal attendance of a medical officer in accordance with the following classification:-

Class.

Entitled persons.

Appointed Medical Officers.

A.

Officers of Government whose monthly pay as defined in the Bihar and Orissa Service Code, is not less than Rs. 300 whether their appointments are Gazetted or not.

Civil Surgeon

B.

Officers of Government whose monthly pay is less than Rs. 300.

Assistant Surgeon or failing an officer of this rank,
Sub-Assistant Surgeon.

C.

All lady members of the State Services Grades I, II and III.
Government lady doctors attached to the hospitals situated at the place of postings and failing that Government lady doctors attached to the nearest hospital or an Assistant Surgeon or Sub-Assistant Surgeon of the nearest hospital.[O. added by No. 14818 Medl. dated 20.10.1951].

Note 1. - A Sub-divisional Officer should ordinarily consult the Sub-divisional Medical Officer for his ailments but when he is seriously ill he may call in the Civil Surgeon. This privilege should always be exercised with proper discrimination and should not be abused. Before the Civil Surgeon is called in the local medical officer should be consulted as to the

desirability of such a course.

2. The following officers though not included in class A are entitled to attendance by the Civil Surgeon:

(1)

Junior Executive Officers and Engineers of the Royal Indian Marine Department when they are required to be treated on shore

(2)

Postmaster at Sadr, stations.

3. For Patna, the Civil Surgeon is the authorised medical attendant of those Government servants whose pay is Rs. 300 or more per month whether their appointments are Gazetted or not. The Assistant Surgeon of Gardanibagh should, however also attend and officers whose pay is Rs. 300 or more per month if sent for by them provided that the officers reside in New Capital and to the west of the Patna railway station. The Assistant Surgeon of Gardanibagh assisted by the Second Medical Officer under him is too authorised medical attendant in respect of State Government servants drawing less than Rs. 300 per month but more than Rs. 150 per month as their pay, if they reside in New Capital and to the west of the Patna railway station. The Assistant Surgeon of the Police Hospital, is the authorised medical attendant for all Government servants getting less than Rs. 300 per month but more than Rs. 150 per month who reside in the area of Patna proper to east of the Patna railway station. The Assistant Surgeon of the Patna City Hospital is the authorised medical attendant for those Government servants drawing less than Rs. 300 and more than Rs. 150 per month as their pay who reside in the Patna Civil area.

(Deputy Inspector-General, Civil Hospitals' Letter No. 3004, dated the 16th February 1951 and Inspector-General, Civil Hospital' memo no. 10308, dated the 10th June, 1949).

4. For places where there is no Civil Surgeon, Assistant Surgeon, or Sub Assistant Surgeon, "Appointed Medical Officers" should be as laid down in Rules 6 and 12 of these Rules.

3. Title of Government servants in superior service to medical attendance at their own residence.

- Officers in superior service are entitled to attendance at their own residences, if the case of other circumstances required it. It is, however, left to the good taste and good feeling which should exist, between patient and doctor to regulate the procedure in individual cases. While, on the one hand, persons should refrain from insisting unnecessarily on the attendance at their houses of the medical officer, it is incumbent on the latter to comply with all reasonable requests of this nature. The attendance of a medical officer at a distance of more than *five miles is not to be required, except in extraordinary circumstances. But all officials who are able to attend officer should consult the medical officers at the hospital or dispensary at regular morning or evening hours [* now 8 kilometres]

Note 1. - The attendance or residence authorised in this Rules relates to attendance by appointed medical officers only as defined in these Rules or similar rules framed hereafter.

2. The question of treating a Government servant at his residence has been very carefully considered. There are often instances where much needed accommodation could not be provided for patient in hospitals. In such case, the case may be treated by the authorised medical attendant at the Government servant's house. The authorised medical attendant must produce a certificate from the Superintendent of the hospital that no accommodation was available in the hospital. At the same time it should be clearly indicated that as soon as accommodation becomes available in the hospital the person concerned should be removed from his residence to the hospital, in case where a patient is treated at his residence for lack of accommodation at the hospital, the authorised medical attendant should be authorised to order the issue of medicines for the patient from the hospital as if the case was admitted to the hospital.

(Local Self-Government Department letter No. 15265-Medl. dated the 11th December, 1950).

3. If a Government servant falls ill in his quarters and is attended to by his authorised medical attendant he should get free supply of medicines provided that officer is not advised by his authorised medical attendant to get himself admitted to the hospital in which accommodation is available.

(Local Self-Government Department letter No. 15265-Medl. dated the 11th December 1950)

4. The provisions of Notes 5, 6, 8 and 9 appended to Rule 1 above apply also to the free medical attendance at residence authorised in Rule 3.

4. Title of officers in inferior service of medical attendance.

- Officers in inferior service and the servants of Government employees claim free medical attendance and medicine at the local general hospital or dispensary only. When is ill to attend as out patients, they will, on due notice being given, be visited, in the first instance, by the Assistant or Sub-Assistant Surgeon in medical charge of a hospital and arrangements

made, if possible, for their being removed to the hospital as in-patients.

5. Civil Surgeon to see a Government servant when recommended by the subordinate medical attendant.

- In all cases of emergency or great danger or difficulty, the attendance of the Civil Surgeon shall be given to persons not ordinarily entitled to it when applied for by the subordinate medical attendant.

6. Title of Government servants to free medical attendance by L.B. Drs.

- Medical officers in charge of dispensaries maintained or aided by local bodies shall attend free of charge Government servants on duty or on leave residing in the town or village in which the dispensary is situated. This concession does not apply to families of Government servants for attendance on whom fees may be charged.

7. Part time officers not entitled to free medical attendance.

- A part time officer of Government, such as a Government advocate or pleaders is not entitled to free medical attendance or medicines.

8. Every medical officer to attend a risk call in case of emergency.

- On the grounds of humanity, and irrespective of strict right to his services every medical officer shall attend without delay to a risk call in any case of emergency and after having given such aid or advice as the circumstances demand, may transfer treatment of the case to the proper medical attendant.

9. Consultation with specialist.

- A. (1) In the case of a Government servant entitled to free medical attendance who is seriously ill the authorised medical officer in attendance is at liberty to consult with another medical officer or a specialist and is permitted-

(a)

to send the patient with the provisional permission of the controlling officer of the patient, if such permission can be obtained without risk to the patient, to another medical officer or to a specialist or to the nearest Government hospital providing special treatments where in his opinion medical attendance is absolutely required for the patient; or

(b)

if the patient is too ill to travel, to obtain the aid of the other medical officer or of the specialist for the purpose of consultation by moving the Inspector-General of Civil Hospital to depute the other medical Officer or the specialist. The Inspector-General of Civil Hospital, shall pay due regard alike to the interest of the patient and of general public.

Note. - In case of special urgency the authorised medical attendant may however, call in the other medical officer or the specialist in anticipation of orders from the Civil Surgeon or the Inspector-General of Civil Hospitals to whom the action taken should be reported without delay.

(2)

A patient sent under Clause (a) of sub-rule (1) on production of a certificate in writing by the authorised medical attendant in this behalf and duly countersigned by the Civil Surgeon shall be entitled to travelling allowance for the journey to and from the headquarters of the specialist or the second medical officer as the case may be.

(3)

The specialist or the second medical officer summoned under Clause (b) of sub-rule (2) shall, on production of a certificate in writing by the authorised medical attendant in this behalf and duly countersigned by the Civil Surgeon or by the Inspector-General of Civil Hospitals, as the case be, entitled to travelling allowance for the journey to and from the place, where the patient is.

B. (1) When the place at which the Government servant falls ill is not the headquarters of the authorised medical attendant or has no Government hospital providing full facilities for proper treatment-

(a)

the patient shall be entitled to travelling allowance for the journey to and from such headquarters or the hospital; or

(b)

if the patient is too ill to travel, the authorised medical attendant shall be entitled to travelling allowance for the journey to and from the place where the patient is-

(2)

Applications for travelling allowance under sub-rule (a) shall be accompanied by a certificate in writing signed by the authorised medical attendant stating that medical attendance was necessary and, if the application is under Clause (b) of the sub-rule, it shall be accompanied by a certificate in writing signed by the medical attendant that the patient was too ill to travel, countersigned by the immediate superior of the medical attendant.

10. Payment of fee by Government to provide medical practitioners when called in emergency owing to no Government

medical officer being available.

- When a Government servant is entitled at State expense to medical treatment or consultation attendance by a Government medical Officer the local Government may sanction the payment of a reasonable fee to a private medical practitioner who has been called in emergency owing to no Government medical Officer being available at the time or place.

11. Government servant not entitled to reimbursement of fees paid to private medical practitioners or the cost of medicines purchased privately.

- No Government servant, who is entitled to the gratuitous attendance of a Government medical officer or to a free supply of medicine from public stores, shall be reimbursed the fees which he may have occasion to pay to a private medical practitioner or the cost of medicines which he may purchase privately.

Note. - This Rule has been liberalised by the issue of Local Self-Government Department letter No. 1563 Medl. dated the 11th December. 1950, which has been incorporated in Note 3 to Rule 1 above and Notes 2 and 3 to Rule 3 above. Under these instructions there should be no occasion for Government servant to purchase any medicines while admitted as indoor or outdoor patients of the hospital or dispensary or if they are treated at their residences by the authorised medical attendant who does not advise him to get admitted to the hospital in which accommodation is available.

12. Medical officer of the nearest hospital to attend a Government servant.

- At places where a Government medical officer has not been specially appointed for attendance on, Government servant residing in particular area, the Assistant or Sub Assistant Surgeon in charge of the nearest hospital or dispensary is liable to attend gratuitously on such Government servants as are entitled to free medical attendance from a medical officer of his status. No fee should be demanded by such Assistant or Sub-Assistant in any circumstances from any Government servant entitled to his attendance.

13. Liability of a Government servant to pay fees if he knowingly calls in a medical officer other than the appointed medical officer.

(a)

If a Government Servant knowingly calls in a medical officer other than the appointed medical Officer, it will be considered a private arrangement and the former may claim the usual fees,

(b)

If an officer at the headquarters of a district entitled to the service of the Civil Surgeon calls in with the cognizance of the Civil Surgeon, the Assistant Surgeon he shall be liable to pay the latter, a fee only if he was warned at the outset of his liability

Note 1. The medical officer will not be entitled to any fee if he is detained by the Civil Surgeon to attend person entitled to the service of the Civil Surgeon on account of the latter's inability to attend, or he is taken as an assistant either in a surgical or medical case.

Note 2. When an Assistant Surgeon, is in charge of the station during the absence of the Civil Surgeon, he is not entitled to demand any fee for attending any officials who are entitled to the services of the Civil Surgeon. .

14. Families of Government servants not entitled to free medical attendance.

- Medical officers in the service of Government are, as a general rule, entitled to remuneration for professional attendance on the families of those public servants whom they are bound to attend gratuitously. An exception is made in the case of families of the following classes of officers:-

Families of officers of the military Department entitled

Military to free medical attendance.

Exception- Families of the following classes of officers belonging to the Department:-

(a)

Military officers (but not those in civil employment).

(b)

Officers of the Royal Indian Marine Department.

(c)

Cantonment Magistrates.

(d)

Cantonment Chaplains.

(e)

Warrant Officers including those of the Royal Indian Marine,

(f)

Army School Masters and School Mistresses.

(g)

Non-Commissioned Officers and men in military employ, other than purely regimental.

(h)

Non-Gazetted Officer and subordinates of the Indian Ordinance Department,

(i)

Civilian staff of army headquarters and those of Army Divisional Brigade, or Station Staff Officers.

(j)

European pensioners of the Indian Military Service including retired departmental officers with honorary rank and Warrant Officers, not employed by, or in receipt of a pension or gratuity from, the Civil Department.

15.

Fees for medical attendance on families to be settled before hand.

- No scale of fees has been prescribed for medical attendance on the families, of Government servants. To prevent any subsequent misunderstanding a definite arrangement should be made in such cases on the first occasion that the medical officer is called in. In the absence of a special agreement or contract on the basis of a yearly payment, it will be fair to assume that the Medical officer's professional services are to be remunerated by the visit.

16.

Medical attendance on Indian Chiefs, noble or gentlemen of high position.

- Provided that it does not interfere with due performance of his ordinary duties every Government Medical Officer shall be at liberty to attend an Indian Chief or noble or gentleman of position who desires professional attendance. Should such attendance involve the absence of the medical officer from his duties for any substantial period, the special permission of the local Government must be obtained previously.

17.

Travelling allowance for journey to obtain medical treatment.

- Nothing in these rules shall be deemed to entitle patient:-

(a)

to travelling allowance for a journey-

(i)

for attendance by a Dentist or Oculist; or

(ii)

outside the Province; or

(b)

to reimbursement of cost incurred in respect of medical services obtained by him or to travelling allowance for any journey performed by him otherwise than as expressly provided in the Bihar Set vice Code.

18.

Countersignature of certificates for travelling allowance purpose by the Administrative Medical Officer.

- Any certificate that may be required to be given for travelling allowance purposes of a patient shall be countersigned by the Inspector-General of Civil Hospitals.

19.

Patient attending at hospital to receive advice and medicines free of charge.

- Every patient attending at a charitable hospital or dispensary is entitled to receive advice and medicines free of charge.

20.

Prohibition of accepting fee, gift or reward from a patient in a Hospital.

- No medical officer shall receive a fee, gift or reward in any shape from a patient treated at a public hospital, unless permitted to do so by special order of Government.

21.

Pensioners not entitled to free medical attendance.

- No civil pensioned officer of Government is entitled to receive gratuitous medical attendance.

22.
Employees of local bodies not entitled to free medical attendance by Government medical officer.

- No person in the service of a local body is entitled to free medical attendance from a medical officer in Government service, except when the service of such an officer is at the disposal of the local body.

23.
Medical attendance on disqualified proprietors of encumbered estates or under the management of the Court of Wards.

- The fees for the medical officers in Government service attending on disqualified proprietors of encumbered estates or under the management of the Court of Wards and their families shall be agreed upon by the medical officer and the District Officers concerned. If a District Officer has any doubt about the propriety of any charge made by a medical officer he should refer the matter to the Inspector-General of Civil Hospitals' giving a complete statement of the case. If he does not agree with the Inspector-General of Civil Hospitals' award he should then refer the cases, through the Commissioner of the Division to Government for orders. Ordinarily the scale of fees shall be as follows:-

(1)
Rupees sixteen per visit for the Civil Surgeon and Rs. 4 per visit for the Assistant Surgeon for attendance in the attendance at headquarters;

(2)
Rupees fifty per visit for the Civil Surgeon and Rs. 25 per visit for the Assistant Surgeon for attendance in the mufassil within 10 Miles of headquarters;

(3)
Rupees one hundred per visit for the Civil Surgeon and Rs. 50 per visit for the Assistant Surgeon for attendance in the mufassil beyond a distance of 10 miles from headquarters;

(4)
A Civil Surgeon or an Assistant Surgeon shall also be entitled to travelling allowance for journeys beyond headquarters according to the Bihar Service Code.

Surgical operation fees for each case shall be decided according to the nature of the operation.

24.
Medical attendance on military personnel by civil medical officer free of charge.

- In cases where a Government medical officer in military employ in a station is unable to attend military personnel entitled to free medical attendance owing to cause beyond his control viz., either because of other official work of an emergency nature absence from the station, then the military authorities can obtain officially from the local Head of the Department concerned the services of the civil medical officer employed in the same station, who will attend such cases without any extra remuneration.

In cases of emergency, however, a civil medical officer of the station should be asked direct by the military authorities to take charge of the case the local Head of the Department concerned being informed by telegram that this has been done.

(D. G. I. M. S. Letter no. 765/671-93-A, the dated the 27th February, 1929).

25.
Concession regarding medical treatment to Government servants of other Province.

- Government servants from other Province seeking admission to hospitals and other medical institution in this Province should be charged for their treatment at the hospitals and institution at the same rate as the public of Bihar are charged. [Government order no. 1603 L.S.G., dated the 26th March, 1940]

26.
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Appendix I

Instructions for free medical attendance and treatment of families of Government servants at the hospitals.

(I)
Copy of letter no. 407-L.S.G.R. dated Ranchi, the 11th June, 1945, from E. T. Prideaux Esq. O. B. E. I. C. S., Secretary to the Government of Bihar, Local Self-Govt. Deptt., to all Secretaries to the Government of Bihar Heads of Departments, the Registrar, Patna High Court and the Secretary to His Excellency the Governor of Bihar.

Subject. - Medical attendance and treatment at hospitals-Grant of concession to families of Government servants.

I am directed to enclose a copy of Letter No. F. 12 (6)-W/11/45, dated the 19th April, 1945, with enclosures, from the Government of India, Finance Department and to say that Provincial Government have been pleased to decide that families of Government servants under the rule making control of this Government should be entitled free of charge to medical attendance and treatment at hospitals as defined in the relevant Medical Attendance Rules, applicable to the Government servants concerned and on the scale and conditions allowed to the Government servants himself in each case. This concession does not include medical attendance or treatment other than at a hospital at which the Government servant himself is entitled to treatment free of charge. The terms "family" means a Government servant's wife, legitimate children residing with and wholly dependent on him.

2. These orders have effect in respect of treatment and attendance received from and after 1st May, 1945, until further notice.

Copy of the Letter No. 2149 A.dated 21.1.1958.

Subject-Recognition of the Health Centres for the purpose of medical attendance and treatment of Government servants and their families.

I am directed to say that Government servants and their family members living in Kosi-Kamla area and in the N. E. S. Block feel much difficulty in getting free medical attendance and treatment due to non-availability of hospitals and dispensaries in their areas. It has, therefore, been decided by Government that the Health centres in the Kosi-Kamla area and in the N. E. S. Blocks with other sub-centres should be the recognised institutions for the purpose of free medical attendance and treatment of the Government servants and their families residing in those areas.

Subject. - Medical facilities to the State Government employees at Tilaiya.

I am directed to say that some of the staff of this State Government are stationed at Tilaiya Dam and it is necessary to provide medical facilities to them and to their families. There is no State Hospital or Dispensary at Tilaiya, the nearest Government Hospital being at Kodarma about 15 miles from there. Government have therefore been pleased to order in consultation with the D. V. C. authorities that all the State Government servants and their families residing at Tilaiya would receive free medical attendance and treatment by the Medical officer of the D. V. C. as outlined below:-

1. The Government servants and their families will receive in the Corporation Hospital, the same facilities of free treatment at the out patient Department as given to the Corporation employees.
2. As all the beds in the Corporation Hospital are chargeable, there being no general ward, the employees of the State Government and their families would be admitted in the Corporation Hospital at Tilaiya subject to availability of beds in the same way as the Corporation employees are treated.
3. The employees of the State Government will pay the usual charges including Medical Officers' fees at the rate prescribed for State Government servants when admitted in the Paying Wards' if any, the Tilaiya Hospital. The fees will be deposited with the Accounts Officer of the Camp concerned.
4. The employees of the State Government will pay fees to the Medical Officers of the Corporation when called at their residence at the rates prescribed in Government letter No. 3302 H. dated the 4th February, 1954 (copy enclosed).
5. The Medical Officer of the Corporation will be the authorised medical attendant for the Government employees and their families stationed at Tilaiya, The Government servants will get re-imbursement of the cost of medicines, prescribed or for fess paid to the Corporation Medical Officer, on production of a certificate in the prescribed form (copy enclosed) from the authorised Medical attendant. All vouchers etc., should accompany the certificate of claim.
6. The employees of the State Government stationed at Tilaiya are entitled to free medical attendance and treatment both at their residence and at the Corporation Hospital, but their families are entitled to free medical attendance and free treatment at Government cost only at the Corporation Hospital, Tilaiya.

This order will take effect from the date of the issue of this letter and will remain in force for a period of six months for the present after which a review will be made on the working of this arrangement.

Copy of letter no. F. 12 (6) W/II/45 dated the 19th April, 1945, from the Deputy Secretary to the Government of India, Finance Department, New Delhi, to the Chief Secretaries of all Provincial Governments.

Subject:-Extension of the scope of the medical concessions at present provided for Government servants and their families.

I am directed to state that in connection with the recent proposal for the revision and liberalisation of the dearness and war allowance schemes, the Government of India, have had under consideration, the question of the relief sanctioned by way of direct cash allowances and it has been decided that the extension of the scope of the medical concession at

present provided in the Secretary of State's Service's (Medical) Attendance Rules, 1938, or the Central Services (Medical Attendance) Rules, 1944, as the case may be, will be a suitable form of additional relief. The sanction of the Secretary of State has accordingly been obtained to the extension of the medical concession as are applicable to Government servants when treated at hospital and Government of India have issued orders giving effect to this decision both in regard to officers of the Secretary of State's Services and officers under their rule-making control. I am to enclose a copy of these orders for your information and to suggest that the provincial Government may consider the grant of concessions to Government servants under rule-making control on the same terms and conditions.

Copy of office memorandum No. R. 12 (6) W-11/45, dated the 18th April, 1945, from the Government of India, Finance Department to all Departments of the Government of India and Secretaries of the Governor-General.

Subject. - Medical attendance and treatment at hospitals-Grant of concession to families of Government servants.

The undersigned is directed to say that Governor-General-in-Council has decided that families of Central Government servants should be entitled free of charge to medical attendance and treatment at hospitals as defined in the relevant medical attendance rules applicable to the Government servants concerned and on the scale and condition allowed to the Government servant himself in each case.

This concession does not include medical attendance or treatment other than at a hospital at which the Government servant himself is entitled to treatment free of charge. The term 'family' means a Government servant's wife, legitimate children and step children residing with and wholly dependent on him.

2. These orders will have effect in respect of treatment and attendance received from and after the 1st January, 1945 until further notice.

3. The Secretary of State has approved the grant of this concession in so far as officers subject to his rule making control are concerned.

Copy of letter no. Med-1-VM-1390/49-6073-Medl., dated Patna, the 23rd April, 1951 from P.K.J. Menon, Esq., I.A.S. Secretary to the Government of Bihar Local Self-Government Department (Medical Section), to the Inspector-General of Civil Hospitals, Bihar.

Subject. - Free medical attendance and treatment of the families of the Government servants and members of the Legislature of the State of Bihar.

I am directed to say that in their letter no. 407-L.S.G.R. dated the 11th June, 1954, Government were pleased to extend the concession of free medical attendance and treatment at hospitals to the families of Government servants of the State. The term 'family' means at present, for the purpose of medical concession, a Government servants' wife, legitimate children and step children residing with and wholly dependant on him. Of late the question of including 'the parents' within the scope of the definition of the term 'family' has been under the consideration of Government. It has now been decided that for the purpose of medical concessions, at hospitals the terms 'parents' and parents should be treated as coming within the meaning of the term 'family' provided they are entirely dependent on the Government servants concerned.

It has also been decided that the families of the members of the State Legislature should also have the benefit of free medical attendance and treatment on the same scale and conditions as are applicable to the families of Government Order no. 7605 L. S. G. dated the 23rd December, 1932 and No. 836 L.S.G., dated the 24th January, 1950.

These order will have effect from the date of issue of the letter.

Copy of memo No. 6073-Medl., dated the 23rd April 1951 by the Secretary to the Government of Bihar, Local Self-Government Department.

Copy forwarded to all Departments of Government, Heads of Department and Departments of Bihar Legislature, for information.

Copy of memo No. 6073-Medl., dated the 23rd April 1951, by the Deputy Inspector-General of Civil Hospitals, Bihar.

Copy forwarded to all Subordinate Officers for information.

Appendix II

Rules for the classification and charges for patients admitted to different categories of Paying Wards in Government hospitals in Bihar

Classification

The Paying Wards will be divided into three categories-

Class 1. - This includes of Class I, grade A and Class I, grade B-Grade A- This includes of accommodation provided at the Nursing home (Cottage Hospitals) at Patna Medical College Hospital and Darbhanga Medical College Hospital and

at Ranchi.

Grade B. - This consists of family wards referred to as Indian Paying here to-fore.

Class II. - This consists of paying ward accommodation available at the district and sub-divisional hospitals.

Class III. - There will be middle class paying wards and will accommodate the middle class paying patients in all Sadar Hospitals and the side rooms available at the Female Section of the Patna Medical College Hospital and the Darbhanga Medical College Hospital.

Class I. - Grade-A-The charge will be Rs. 20 per diem which will cover the charges on the following:-

(a)

Accommodation.

(b)

Daily attendance by the attending physicians or Surgeons.

(c)

Ordinary Nursing.

(d)

Special Diet.

(e)

Ordinary Drugs and dressing available in the hospital.

(f)

All pathological, X-Ray and other diagnostic service.

The charge for operation will be inclusive of Anaesthetists fees, operation theatre charge, etc., will be in addition to above charge of Rs. 20 per diem.

Class I. - Grade B-The charge will be Rs. 15 per diem and this will entitle the patients to all privileges enumerated above for class I, grade A, except that diet will not be provided.

Class II. - The charge will be Rs. 10 per diem. This will entitle the patient to the same privileges as are allowed to Class I grade A, patients at the district and sub-divisional Hospitals.

Class III. - Middle Class Paying Wards-The charge will be Rs. 2-50 Paise per diem for patients receiving ordinary diet and Rs. 4 per diem for the patients receiving special diet and Rs. 1.50 Paise when no diet is taken from the hospital. The rest of the hospital services will be free including daily medical attendance, diagnostics and surgical.

The Government servants will be charged Rs. 7.50 Paise for accommodation and treatment in Class I-A. Rs. 5 for accommodation and treatment in Family Wards, Rs. 5 for accommodation and treatment in Class II Paying Ward and Rs. 1.00 for accommodation and treatment in Class III without diet and Rs. 3 with ordinary diet and Rs. 3 with special diet. "Officers belonging to the I. C. S. I. A. S. and I. P. S. and their Families will be charged at Rs. 4 only per day as the diet charge for the Cottage type accommodation in all Hospitals, where such accommodation exists and Rs. 2.50 Paise only per day for the non-dieted of Indian Paying." [Para in "" added by memo no. 396 H dated 6.1.1958],

Medical officers who are specialists, e.g. Professors and Lecturers of the Patna Medical College Hospital and Darbhanga Medical College Hospital will be entitled to the following fees for attendance or examination apart from the fees connected with the operation:-

(a)

Attending Physicians or Surgeons for daily visit-Rs. 2.50.

(b)

For each Pathological examination-half the fees prescribed for each Pathological examination from private paying case.

(c)

X-Ray-Rs. 3.75 Paise per diagnostic examination.

(d)

Electro Cardiograph-3.50 Paise for one complete examination.

As the fees to be charged from the paying patients in future are going to be consolidated the doctors' fees will be paid by the Government at the end of every month for which bills will be submitted to the Superintendent of the hospital concerned.

Fee to be charged by doctors who have not been declared as specialists.

(1)

The daily attendance fee-Rs. 1.50 Paise.

(2)

Pathological examination-Rs. 1 per examination.

(3)

X-Ray examinations-Rs. 1.50 Paise per diagnostic examination.

No fees will be charged by any medical officers for any medical aid rendered to Government Servants.

Appendix III

Rules regarding fees to be charged by Maternity Supervisor, Patna

Note. - There is a Maternity Supervisor posted at the Patna Medical College Hospital to attend to maternity cases of Government servants and the members of the public. Under the Rules framed by Government, Government servants may avail of the services of the Maternity Supervisor without payment of fees. They can also obtain free of cost an ambulance car which has been placed under the disposal of the Maternity Supervisor for transporting maternity cases to and from the hospital. The Rules on the subject are reproduced below.

The State Government have been pleased to make the following Rules, to regulate payment of fees for the services rendered by the Maternity Supervisor when she is required to attend on labour cases:-

(1)

When the Maternity Supervisor visits Labour case as a consultant to a midwife for rendering necessary advice and guidance in difficult cases, no fees should be charged.

(2)

A call should be regarded as a private call when the party approaches the Maternity Supervisor direct for domiciliary service. In such case the following fee should be charged:-

(i)

A fee of Rs. 4 only for an ordinary visit.

(ii)

A fee of Rs. 30 (Rupees thirty only) when the Maternity Supervisor actually conducts a labour cases under her personal supervision. This should include three free visits during the first week of confinement.

(3)

No conveyance charge should be realised in any case for any visit.

(4)

Government servants may avail of the services of the Maternity Supervisor on direct approach and no fee should be charged from them.

(5)

The fees chargeable under sub-paragraphs (i) and (ii) of paragraph 2 above should be realised by the Maternity Supervisor who should grant receipt and maintain counterfoil and proper account for the same. The entire fees thus realised should be credited to Government Revenue by the Professor of Obstetrics and Gynaecology at Prince of Wales Medical College, every month under the head- "XXVII Medical-Collection of Payments for Services Rendered."

Appendix IV

Rules regarding Anti-Rabic Treatment

Copy of Resolution No. 2187-L.S. G. dated Patna, the 22nd April, 1944, by the Government of Bihar, Local Self-Government Department.

In supersession of the rules contained in resolution No. 8708-L.S.G. dated the 22nd July 1929 as subsequently amended from time to time the Government of Bihar is pleased to prescribe the following rules regarding the grant in Bihar to Government servants and other persons of certain concessions to enable them. When bitten by a rabid animal, to proceed to the Pasteur Institute at Patna or the nearest centre where anti-rabic treatment is available.

Rules--Regarding the Grant of concessions to Government Servants and Indigent person in Bihar proceeding to the Pasteur Institute at Patna or the nearest station where anti-rabic treatment is available.

Government servants

1. Any Government servant who has been bitten by a rabid animal may be granted special leave not exceeding one month to enable him to proceed to the Pasteur Institute at Patna or the nearest station where anti-rabic treatment is available provided that his absence does not necessitate the appointment of a substitute.

2. The additional concessions noted below may be granted for the same purpose to permanent Government servants who have been bitten by a rabid animal and whose substantive pay does not exceed the several limits specified:-

(i)

All Government servants irrespective of the pay drawn by them may be granted-

Concession A. - Actual travelling expenses to the nearest Pasteur Treatment Centre and back namely one return fare by railway of the class by which they are entitled to travel on duty and the actual cost of transport for journeys by road, boat or steamer not exceeding the amount admissible to them on duty.

(ii)

Government servants drawing not less than Rs. 100 and not more than Rs. 500 may be granted the following two concessions (B and C) in addition to the concession A above:-

Concession B. - In the case of an officer whose absence necessitates the appointment of a substitute up to one month's leave which will not be debited against his leave account. In the case of those guided by old leave rules in superior service the leave-salary should be average pay calculated in accordance with Rule 12, Bihar and Orissa Service Code, and in the cases of those guided by the revised leave rules the same should be in accordance with Rule 334 N ibid.

Note. - During the one month's extra leave granted under the concession, the leave-salary of a Government servant in inferior service will not be subject to the usual condition of there being no extra expense to Government. The leave-salary will be equal to pay in accordance with Rule 305 E, Bihar and Orissa Service Code.

Concession C. - An advance not exceeding one month's substantive pay. This advance will ordinarily be recovered in three equal monthly instalments; but in cases of hardship it may at the discretion of the authority sanctioning the advance be recovered in more than three but not more than twelve equal monthly instalments.

(iii)

Government servants drawing more than Rs. 25 but less than Rs. 100 a month may be given the following concession (D) in addition to the concession A, B and C above:-

Concession D. - In cases where the Government servant who has been bitten by a rabid animal is a man who is by reason of age or other sufficient cause, incapable of travelling alone, or a woman, the despatching officer may allow an attendant to accompany the patient to the nearest Pasture Treatment Centre and back. In special cases more than one attendant may be allowed, e.g. when the patient is a woman and in addition to one attendant is compelled to take one or more children with her. The travelling expenses of such attendant or attendants will also be paid on the scale allowed for Government servants in concession A, above and in addition daily expenses for the attendant or attendants at a rate not exceeding 25 Paise a day may be paid by the despatching officer in cases where he is satisfied that the patient is unable to pay.

(iv)

Government servants drawing not more than Rs. 25 a month may be given the following two concessions (E) and (F) in addition to the concessions A, B, C and D above:-

Concession E. - A grant of daily allowance at the rate admissible to officers of third or fourth grade (as the case may be) for the period during which they are under treatment at the nearest Pasteur Treatment Centre and for the period spent in the journey to and from the centre.

Concession F. - In case where an attendant or attendants is or are allowed to accompany the patient to the nearest treatment centre daily allowance for the attendant or attendants on the scale allowed for the patient in concession E above may be paid in addition to the travelling expenses and wages allowed in concession D above.

3. The concession of the foregoing rule may be allowed to Government servants without a lien on a permanent post who are officiating in a permanent or temporary post provided that the tenure of their appointment is excepted to last for a period sufficient to enable the necessary recoveries to be made. The leave-salary of such a Government servant shall not exceed the pay which he drew on the last day of duty period to the commencement of the leave provided that the term of the temporary or officiating appointment is not terminated during the period the leave so granted.

4. All officer of the Civil Veterinary Department of whatever class are treated as on duty for the purpose of pay, travelling allowance, leave and pension for the periods covered by their journeys to and from the institute or anti-rabic treatment centre and their residence there for treatment, subject, to the provision that this concession is admissible only to an officer who comes into contact with a rabid or suspected animal while actually discharging his official duty.

5. Families of Government servants. - Any Government servant whose substantive pay does not exceed Rs. 500 a month, may if a member of his family is bitten by a rabid animal and he has difficulty in finding at once the means of sending him or her to the Pasteur Institute at Patna or the nearest station where anti-rabic treatment is available, be given an advance not exceeding one month's substantive pay as in concession C and of the travelling expenses to the

institute or anti-rabic centre and back of the persons bitten as in concession C. If his substantive pay is more than Rs. 25 but less than Rs. 100 an advance for travelling expenses of an attendant or attendants where necessary may also be given at the rate sanctioned for the patient subject to the same conditions of recovery as for concession C. If his substantive pay does not exceed Rs. 25 a month or if the opinion of the Commissioner of the Division or of the Head of Department, in special circumstances exist which warrant the grant of an extended concession to a person drawing a substantive pay of not more than Rs. 100 a month, the recovery of the amount advanced as travelling expenses may be waived in full or in part.

6. Persons unconnected with the public service. - Any indigent person unconnected with the public service who in the opinion of any officer authorised to grant the concession is unable to proceed to the Pasteur Institute at Patna or other treatment centres at his own expense may be granted travelling expenses on the following scale:-

(a)

Single third class fare by rail and the actual expenses of journey by road, boat or steamer to Patna or other treatment centre and back.

(b)

Daily allowance at the following rates. - European and Anglo-Indians Rs. 1 during the journey and Rs. 2.50 Paise during treatment, Indians 25 Paise during the journey and 25 Paise during treatment.

(c)

Indigent persons including women, children under 16 years of age, and men who are, by reason of age or other sufficient cause incapable of travelling alone may be allowed one attendant to accompany them to the institute or treatment centres except in special cases, e.g. when the patient is a child unable to travel without the mother or other women in charge who also requires an attendant or when the patient is a woman and in addition to one attendant is compelled to take one or more children with her. More than one attendant may be allowed, the cost being borne by the fund to which the charges on account of the patient are debited. Such attendant or attendants may be granted the travelling expenses and daily allowance at the rate sanctioned for the patients and also wages not exceeding 25 Paise a day, in cases where the despatching officer is satisfied that the patient is unable to pay.

Note-The daily allowance under Clauses (b) and (c) above will be paid at the rate of 37 Paise a day for the duration of the war.

7. The Superintendent of the Pasteur Institute at Patna or the District Magistrate at treatment centres at other places may make payment to indigent persons who come to the institute or other treatment centres at their own expense but are unable to maintain themselves there or to pay for their return journey. Such payments will be calculated on the scale prescribed in Rule 6 (a) and (b) above and will be charged to the Government of Bihar, the expenditure being debited to the head "57 Miscellaneous- Miscellaneous charges for the treatment of patients at the Pasteur Institute."

8. Power to grant concessions. - The following officers of superior rank to them in their respective departments and officers are empowered to grant the concession referred to in the preceding rules except the daily allowance and return journey charges which will be paid by the Superintendent of the institute or the District Magistrate of the district where there is a treatment centre and will be charged to the Government of Bihar as indicated in Rule 7 and to authorise the immediate departure for Patna or other treatment centres of any Government Servant or indigent persons unconnected with the public service:-

Department

Designation of Officer.

Empowered to grant concessions in respect of-

Remarks

1.

General Administration

Government servants not below the rank of Sub-divisional

Officers including the officer left in charge at headquarters

during the absence of the Sub-divisional Officer on tour.

Government servants and indigent persons unconnected with public service.

2.

Medical..

Medical officer in charge of a subdivision who is not below the rank of an Assistant Surgeon.

Ditto

3.

Agriculture Department.

Director of Agricultural Institute, Pusa. Deputy Director of Agriculture. Assistant Directors of Agriculture, Farm Managers.

Own sub-ordinates only

4.

Settlement Department.

Settlement officers and Civil Assistant Settlement officers in Bihar and Chota Nagpur.

Ditto

5.

Forest Department.

Forest officers in charge of divisions.

Ditto

6.

Public Works Department.

Public Works Department Sub-divisional officers.

Ditto

7.

Police Department.

Superintendents of Police and Assistant Superintendents of Police.

Ditto

8.

Bengal Nagpur Railway.

All Gazetted Officers.

Indigent persons only.

9.

Secretariat..

Under-Secretaries and Assistant Secretaries.

Own subordinates only.

10.

Heads of Departments.

All Gazetted Officers.

Ditto

9. The patient will be required to bring back with him a certificate from the Superintendent of the pasteur institute at Patna or from the Civil Surgeon concerned and produce it before the Officer under whose orders he was sent for treatment.

Appendix V

Miscellaneous provision relating to Government Servants

1. Medical attendance outside the State. - The State Government have made reciprocal arrangements with the Governments of Bombay, C.P. and Berar, Madras, Orissa and U.P. according to which a Government servant of this State is entitled to free medical attendance in the State mentioned above on the following terms and conditions:-

(a)

When a servant of the State Government falls ill in another State while he is on duty (or on foreign service) there, or while he is passing through that State on duty, on charge should be made either by the Government of State or by the Medical Officer for medical treatment or attendance at a Government Hospital.

(b)

The usual charges should be levied (both by the attending medical officer and by the State Government) in case a servant of the State Government falls ill and requires treatment while he is on leave in another State.

(c)

No charge should be made for medical examination of Government Servants of this State for purpose for any extension of leave, ascertaining and invalidating from Government Service:

Provided the medical examination is carried out on the official request of the State Government (Letter No. 591 L.S.G. dated the 3rd November, 1945).

2. Appearance before the Medical Board etc. - No fees are required to be paid by a Government Servant appearing before a Medical Board or any medical officer for appointment, grant of leave, resumption of duty and premature retirement under directions issued to the appropriate medical authority by the appropriate department authorities.

3. Facilities for treatment of Tuberculosis. - In order to avoid a break in service of temporary Government Servants undergoing treatment for tuberculosis and to enable them to return to the posts after treatment the State Government had been pleased to decide that in addition of earned leave and leave on medical certificate which may be admissible to them, they may be granted in relaxation of Rules 305-E and 311 of the Bihar and Orissa Service Code extraordinary leave without pay upto a maximum period of twenty months of any one occasion subject to the following conditions:-

(a)

the leave will be admissible to those who contract tuberculosis and undergo treatment in a recognised Sanatorium:

(b)

the post for which the Government Servant proceeds on leave is likely to last till his return to duty;

(c)

the extraordinary leave shall be granted subject to the production of a certificate from the medical officer in charge of the Sanatorium specifying the period for which leave is recommended;

(d)

the Medical Officer in recommending leave shall consider whether the Government Servant has reasonable prospect of returning to duty; and

(e)

the concession of extraordinary leave up to twenty months will be admissible also to temporary Government Servants suffering from tuberculosis of bones or joints on the production of certificate by a qualified T. B. specialist or a Civil Surgeon.

Appendix VI

Medical attendance and treatment of (1) Hon'ble Ministers and Parliamentary Secretaries, (2) Members of the Bihar legislature and (3) Members of the Public Service Commission.

(1)

Copy of Government Order No. 20-L.S.G.R., dated the 4th June, 1948, from the Secretary to Government, Local Self Government Department, to the Inspector-General of Civil Hospitals, Bihar.

Subject-Gratuitous medical attendance on Hon'ble Ministers, Parliamentary Secretaries and their families.

I am directed to invite your attention to this Department's memo No. 4472- 73-L.S.G., dated the 17th April, 1925, on the above subject and to say that it has been decided by Government that the Hon'ble Ministers and their Parliamentary Secretaries should have the benefit of free medical attendance and supply of medicines to Government servants of the Province under the Rules published in notification No. 165-L.S.G.R., dated the 2nd October, 1947 and also the concession allowed to the families of Government servants in Government Order No. 407-L.S.G.R., dated the 11th June, 1955, I am to request that the above decision may be communicated to the authorities subordinate to you.

Copy of the letter No. 9582-L.S.G. dated 18.11.1936.

Subject:-Payment of fees for specialist treatment of Government servant at non-Government Institutions.

I am directed to say that it has been decided by Government that when a Government servant is injured in, and as a result of the discharge of his duties, so that he requires a specialist treatment, and he cannot with safety be sent to the nearest Government hospital providing such treatment, he may be sent to a local or neighbouring non-Government hospital for such treatment. The cost of such treatment, if charged, will be paid by the head of the office of Government servant upon a bill countersigned by the Civil Surgeon.

Copy of the letter No. 35-L.S. G.R., dated 8.8.1946.

Subject:-Extension of the scope of Medical concession at present provided for Government servants and their families.

Reference letter No. 2150, dated 17.4.1946 on the subject. I am directed to say that since the right to free medical attendance is a condition of service, it follows from the provision of paragraph 26 of Government of India (High Court Judges) Order 1937, that the Secretary of the State's Services (Medical Attendance Rules) as well as the extension of the scope of the medical concessions provided in those Rules which was approved in the Government of India's letter F-12(6)- W-11-45 dated 19-4-1945 apply to all High Court Judges, including permanent judges belonging to the Indian Civil Service. The rules and concessions mentioned above also apply to temporary judges belonging to the Indian Civil Service, in view of proviso (a) to sub-section (1) of Section 253 of the Government of India Act, 1935.

Copy of Government order No. 6974, dated 13-5-1954.

Subject:-Facilities and concessions in respect of medical attendance and supply of medicines and of accommodation in hospitals admissible to the Speaker, Deputy Speaker, Chairman and the Deputy Chairman and their families.

I am directed to say that Government have been pleased to decide that the Speaker and Deputy Speaker of the Bihar Legislative Assembly and the Chairman and Deputy Chairman of the Bihar Legislative Council and the families should have the benefit of free medical attendance and supply of medicines which have been extended to Government servants of the State under the rules published with Government notification No. 860-L.S.G.FL, dated 2nd October, 1947. They will also be eligible for the concession of free medical attendance and treatment at their residences.

(2)

Copy of Government Order No. 7605-L. S. G., dated the 23rd December, 1946, from the Secretary to Government, Local Self-Government Department, to the Inspector-General of Civil Hospitals, Bihar.

Subject. - Grant of free medical attendance and pathological service to members of the Bihar Legislature.

I am directed to say that it has been decided by Government to extend the concessions of free medical attendance and pathological treatment which are at present provided for Government servants to the members of the Bihar Legislature when they are in session.

Copy of Government Order No. 17848-L.S.G., dated the 8th December, 1949, from the Secretary to Government, Local Self-Government, Department, to the Inspector-General of Civil Hospitals, Bihar.

Subject. - Grant of free medical attendance to members of the Bihar Legislature.

With reference to your letter No. 82/1, dated the 2nd May, 1949, on the above subject, I am directed to say that over and above the concessions sanctioned in Government Order No. 7605-L.S.G., dated the 23rd December, 1946, Government is pleased to extend the concession of X-ray examination to members of the Bihar Legislature, the Legislative Assembly and the Legislative Council-as admissible to Government servants, while it is in session.

Copy of Government order No. 832-L. S. G., dated the 24th January, 1950, from the Secretary to Government, Local Self-Government Department, to the Inspector-General of Civil Hospitals, Bihar.

Subject. - Grant of free medical attendance to members of the Bihar Legislature.

In continuation of Government order No. 17848 L. S. G. dated the 8th December, 1949, I am directed to say that Government is pleased to extend the concessions of free medical attendance as admissible to Government servants to M.L.A.'s and M.L.C.'s when they happen to attend the meeting of Select Committees or Standing Committees of the Legislature even when the Legislature is not in session.

Extract from Government Order No. 607 Medl., dated the 23rd April, 1951 from the Secretary to Government, Local Self-Government Department, to the Inspector-General of Civil Hospitals, Bihar.

Subject. - Free medical attendance and treatment to the families of the Government servant and members of the Legislature of the State of Bihar.

It has also been decided that families of the members of the State Legislature should also have the benefit of free medical attendance' and treatment on the same scale and conditions as are applicable to the families of Government servant of the State subject to the conditions as laid down in Government Order No. 7605-L.S.G., dated the 23rd December, 1946 and No. 832-L. S. G., dated the 25th January, 1950.

Copy of notification No. 3889, dated the 5th December, 1945 by the Government of Bihar, Appointment Deptt.

In exercise of the powers conferred by sub-section (2) of Section 265 of the Government of India Act, 1935, the Governors of Bihar, the Central Provinces and Berar, and Orissa in agreement are pleased to direct that the following amendment shall be, made in the Bihar, Central Provinces and Berar and Orissa, Public Service Commission (Conditions of Service) Regulations namely-

After Regulation 13 of the said Regulation the following Regulation shall be inserted, namely:-

13.

-A. The medical and surgical treatment of a member and his family shall be provided in accordance with rules which for the time being apply to Government Servants of the first grade in superior service in the Province in which the headquarters of the Commission are situated.

Copy of letter No. 760 L.S.G.R., dated 24-7-1948.

Subject. - Provision of free medical attendance to District Engineers.

I am directed to say that Government have been pleased to decide that District Engineers who are non-Government Servants are entitled to the same Concessions, in the matter of medical attendance as are allowed to other Government Servants.

Comments-The copy of the order regarding re-imburement of expenditure incurred on medical treatment is reproduced below:-

Copy of letter No. Med. IVN/56/15464 Med., dated Patna, the 7th November, 1951 from P.K. Menon, I.A.S., Secretary to Government of Bihar, L.S.G. Department to the Accountant General, Bihar through the Finance Department.

Subject. - Accounting procedure for grant of medical attendance and supply of medicines to Government Servants of the State of Bihar.

I am directed to refer to letter No. 15265 Med., dated the 11th December, 1950, which contemplates inter alia the re-imburement of the cost of the medical treatment of a Government Servant of the State:-

(i)
to a hospital or dispensary where the person concerned has been treated; and

(ii)
to the Government Servant concerned on the production of a certificate from the authorised medical attendance that the cost has been incurred by him.

After due consideration of the position Government have arrived at the following decisions with regard to the accounting procedure which should be adopted in making payment in such cases.

2. So far as item (i) is concerned, the existing proceeding of obtaining extra grants through the controlling officer will apply. The Hospitals or dispensaries incurring special expenditure for treatment of Government Servants will apply to the administrative department for re-imburement after giving full details of the charge incurred. It will then be for Government to sanction extra grant to the hospitals usually by augmenting the contingent grant. The Controlling Officer and the administrative department will be responsible for provision of funds in accordance with the present practice.

3. As regards the question of re-imburement of charges incurred by Government Servants, the procedure laid down in the Government of India Finance Department memo No. F-44 (17) Estt. V/46 dated the 24th April, 1946 (copy enclosed) will be applicable. The charges on account of re-imburement of the cost of medicines should be classified under the unit "Allowance" sub-ordinate to the appropriate major, minor, and sub-head under which the pay and employments of the Government Servant concerned are accounted for. Necessary orders sanctioning the expenditure for sums exceeding Rs. 150 will be issued in the form of Government order by the local self Government Department in consultation with Finance Department and under sanctioning expenditure for sums upto 150 will be issued in the form of office order by the controlling office of the Government Servant concerned. The amounts due to a Gazetted Officer are to be drawn on their own salary bill while those due to non-gazetted Government Servants on the establishment pay bills prepared in the office of the drawing and disbursing officer concerned.

4. While the above explains the accounting procedure, it is necessary that there should be some specific provision for financial check and scrutiny of claims to be prepared by a Government Servant. Sub-paragraph (b) of the Government order No. 15265 Med, dated the 11th December, 1950, requires the production of a certificate from the authorised medical attendant before payment can be made. It has been decided that the authorised medical attendant should be required to scrutinise the claims and certify the correctness of the amount, besides there being checked in the office where bills are initially presented As an extra precaution Government have also decided that the certificate of the authorised medical attendant in respect of claims up to Rs. 50 should be countersigned by the Civil Surgeon of the district and the claims exceeding that amount should be countersigned by the Inspector General of Civil Hospitals, Bihar. Specific approval of Government through Inspector General of Civil Hospitals, Bihar will be necessary in case the amount exceeds Rs. 150/-.

Re-Imbursement Certificate

(This certificate is essential in respect of all claims for re-imburement made under paragraph (b) of G. O. No. 15265-Medl., the dated the 11th December, 1950 and 5464, dated the 7th November, 1951).

Medical Attendance Rules

Mr./Mrs./Miss.....| Grand mother, Mother, wifeGrand-father, Father, son ofDaughter
Ms. /Mrs.....employed in the.....Officer/Department had been under my treatment at
the.....Hospital/Dispensary from the.....to
the.....and the under noted quantities of| medicinesBlood| which were essential
for the Recovery/prevention of serious deterioration in the condition, of the patient or their substitute could not be
supplied from the hospital/dispensary as they were neither available nor could be procured by the Hospital/Dispensary,
Dated the.....19.

Signature and designation of theauthorised Medical Attendant

{|

.....HospitalDispensary

|-

| Name of Medicine

| Quantity

| Price.

|-

|

| Countersigned

|-

|

|

Civil Surgeon.....DistrictD. H. S., Bihar

|-

|

| Dated.....

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Translation